

25STCV25184 25STCV25184

County: los-angeles

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Case Number: 25STCV25184 Hearing Date: June 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

30, 2026 TRIAL

DATE: Not set

CASE: Brandi Blue v. Michael Girourad, et al.

CASE NO.: 25STCV25184

DEMURRER

WITHOUT MOTION TO STRIKE

MOVING PARTY: Defendants

City of Los Angeles and Michael Girourad

RESPONDING PARTY: Plaintiff Brandi

Blue

Plaintiff

Brandi Blue ("Blue" or "Plaintiff") was employed by defendant City of Los Angeles ("City") as a Heavy-Duty Equipment Operator in the City's Bureau of Sanitation's Hyperion Water Reclamation Plant. Blue alleges that, between 2019-2025, Blue's supervisors subjected her to discrimination, harassment, and retaliation.

I. BACKGROUND

On August 27,

2025, Plaintiff filed a Complaint against Defendants, the City and Michael Girourad ("Girourad"), alleging causes of action for (1) Sex Discrimination in Violation of FEHA; (2) Race Discrimination in Violation of FEHA; (3) Disability Discrimination in Violation of FEHA; (4) Perception of Disability Discrimination in Violation of FEHA; (5) Failure to Engage in Good Faith Interactive Process in Violation of FEHA; (6) Failure to Provide Reasonable Accommodation; (7) Violation of Exercising Medical Leave Rights Under CFRA and FMLA; (8) Associational Disability Discrimination in Violation of FEHA; (9) Combined Discrimination in Violation of FEHA; (10) Sex Harassment-Hostile Work Environment in Violation of FEHA; (11) Race Harassment-Hostile Work Environment in Violation of FEHA; (12) Disability Harassment-Hostile Work Environment in Violation of FEHA; (13) Associational Disability Harassment-Hostile Work Environment in Violation of FEHA; (14) Combined Harassment-Hostile Work Environment in Violation of FEHA; (15) Retaliation for Disclosing, Reporting, Opposing, Complaining of FEHA Violations and Exercising CFRA Rights; (16) Retaliation for Engagement of Statutory Protected Activities; (17) Failure Engage, Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA; (18) Whistleblower Retaliation; (19) Whistleblower Retaliation; and (20) Defamation. The tenth, eleventh, twelfth, thirteenth, and twentieth causes of action are alleged against Girourad.

On November

18, 2025, Defendants filed a demurrer to the Complaint.

On April

27, 2026, the court issued a ruling to sustain the demurrers to the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, fifteenth, sixteenth, eighteenth, and nineteenth causes of action with leave to amend, and to overrule the demurrers to the tenth, eleventh, twelfth, thirteenth, fourteenth, seventeenth, and twentieth causes of actions.

On

the same day, Plaintiff filed the operative First Amended Complaint ("FAC"), alleging causes of action for (1) Sex Discrimination in Violation of FEHA; (2) Race Discrimination in Violation of FEHA; (3) Disability Discrimination in Violation of FEHA; (4) Associational Disability Discrimination in Violation of FEHA; (5) Combined Discrimination in Violation of FEHA, (6) Sex Harassment-Hostile Work Environment in Violation of FEHA; (7) Race Harassment-Hostile Work Environment in Violation of FEHA; (8) Disability

Harassment-Hostile Work Environment in Violation of FEHA; (9) Associational Disability Harassment-Hostile Work Environment in Violation of FEHA; (10) Combined Harassment-Hostile Work Environment in Violation of FEHA; (11) Retaliation for Disclosing, Reporting, Opposing, Complaining of FEHA Violations and Exercising CFRA Rights; (12) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA; (13) Whistleblower Retaliation (Labor Code § 1102.5); (14) Whistleblower Retaliation (Labor Code §§ 6310, 6400-6404); and (15) defamation.

On May 26, 2026, Defendants filed a demurrer to the first, second, third, fourth, fifth, eighth, ninth, eleventh, thirteenth, and fourteenth causes of action in the FAC.

On June 16, 2026, Plaintiff filed an opposition.

On June 23, 2026, Defendants filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. *¿* (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) *¿* When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. *¿* (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) *¿* “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” *¿* (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.) *¿*

III. DISCUSSION

Defendants demur to the first, second, third, fourth, fifth, eighth, ninth, eleventh, thirteenth, and fourteenth causes of action. As a threshold issue, Plaintiff argues the demurrers to the eighth and ninth causes of action should be overruled because the court rejected Defendants' previous demurrers to these causes of action. The eighth and ninth causes of action were asserted as the twelfth and thirteenth causes of action in the Complaint. However, the court did not address whether

the twelfth and thirteenth causes of action were deficient because of a lack of causal connection to protected status. Accordingly, the court considers all demurrers raised herein.[1]

Defendants advance

one general argument: the FAC fails to allege facts to show Defendants' alleged adverse actions were motivated because of a retaliatory or discriminatory animus. Causes of action one through five are FEHA discrimination claims.

Causes of action eleven, thirteen, and fourteen are retaliation claims. Previously, the court agreed

with Defendants challenge to these claims (alleged as cause of action one, two, three, four, seven, eight, fifteen, sixteen, and eighteen, and nineteen in the Complaint), noting there were only five lines concerning retaliatory and discriminatory animus. (See Minute Order, 04/27/26.) Defendants renew this challenge to the FAC.

After reviewing

the parties' briefing, the Complaint, and the FAC, the court finds the FAC adequately alleges retaliatory and discriminatory animus as to all causes of action except the ninth cause of action.

The FAC is replete with allegations establishing Plaintiff's protected status, protected activities, and the actions undertaken by Defendants because of Plaintiff's status and activities. (See

FAC, ¶¶ 1-24.)[2] For the purposes of demurrer, these allegations are more than sufficient to notify Defendants of the nature of her claims. The

second, third, fourth, fifth, eighth, eleventh, thirteenth, and fourteenth causes of action do not fail on these grounds.

The court takes a different view as to the ninth cause of action for associational disability harassment.

The claim is predicated on alleged harassment based on Plaintiff's association with her son who is autistic.

However, there are simply no allegations connection harassment to Plaintiff's association with her son.

The allegations are connected to her status as the sole Black woman in a male-dominated workplace, requests for accommodations because of injury, and Defendants' alleged efforts to prevent Plaintiff from accruing the necessary hours to advance in her career, among other things. The ninth cause of action is deficient.

Defendants lodge one additional argument as to the fourteenth cause of action for violation of Labor Code section 6310. Defendants argue the fourteenth cause of action fails because Plaintiff did not exhaust her administrative remedies before filing suit. For this proposition, Defendant relies on *Sacramento County Deputy Sheriffs' Assn. v. County of Sacramento* (1990) 220 Cal.App.3d 280 (Sacramento). The argument fails. Sacramento did not concern a violation of Labor Code section 6310. Moreover, prevailing authority holds otherwise. In *Sheridan v. Touchstone Television Productions, LLC* (2015) 241 Cal.App.4th 508, 818-819, the court of appeal held that a plaintiff bringing a Labor Code section 6310 claim is not required to exhaust administrative procedures by filing a claim with the Labor Commissioner prior to bringing the claim.

IV. CONCLUSION

The demurrers to the second, third, fourth, fifth, eighth, eleventh, thirteenth, and fourteenth causes of action are Overruled.

The demurrers to the ninth cause of action are Sustained. Leave to amend is Denied Without Prejudice.

Defendants are ordered to serve and file their Answer to the First Amended Complaint within 5 court days of this order.

Plaintiff is ordered to give notice, unless waived.

Dated: June 30, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Contrary to Plaintiff's position, Defendants challenge the sufficiency of the eleventh, thirteenth and fourteenth causes of action. (See Dem., pp. 3-4.)

[2] These allegations also appear in the Complaint. The court overlooked these allegations in ruling on Defendants' prior demurrer.